

TENTATIVE RULINGS

Date: May 21, 2026

#	Case Name	Tentative
2.	30-2025-01492997 Dymek vs. Ford Motor Company	1. Case Management Conference 2. Demurrer to Complaint Defendant, Ford Motor Company’s demurrer directed at the Complaint of Plaintiff Kristin Dymek (ROA 28) set for hearing on May 21, 2026, is MOOT. A First Amended Complaint was filed on May 8, 2026. (ROA 40). When a plaintiff files an amended complaint after a demurrer or motion directed to the original complaint is filed, but before they are decided, the demurrer or motion becomes moot. (<i>JKC3H8 v. Colton</i> (2013) 221 Cal.App.4th 468, 477; <i>State Compensation Ins. Fund v. Superior Court</i> (2010) 184 Cal.App.4th 1124, 1130-1131; <i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054. “[A] plaintiff has a right to amend his or her pleading at any time before a responsive pleading is filed and even after a responsive pleading is filed up to the time of the hearing on the demurrer.” (<i>Barton v. Khan</i> (2007) 157 Cal.App.4th 1216, 1221 [finding that trial court erred in refusing to accept the amended complaint for filing and explaining that the clerk should have accepted amended complaint filed three days before hearing on a demurrer to complaint, and had clerk done so, the hearing on the demurrer would have been taken off calendar].) Accordingly, the hearing on May 21, 2026, is VACATED. The <u>Case Management Conference</u> is CONTINUED to July 16, 2026 at 9:00 am in Department C34. The Court orders clerk to give notice.
3.	30-2025-01507320 Jin vs. Newport Beach Police Department	1. Case Management Conference 2. Demurrer to Complaint Defendant Newport Beach Police Department (“Department”), moves the Court for an Order sustaining its Demurrer to Plaintiff Chun Jin’s (“Plaintiff”) Complaint. Notably, all papers opposing a motion “shall be filed with the court and a copy served on each party at least nine court days” before the hearing. [Code Civ. Proc. § 1005(b).] The failure to oppose a demurrer may be construed as having abandoned the claims. [See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20 --“Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”.] In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. [<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566--“By failing to argue the contrary, plaintiffs concede this issue”; <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529--“failure to address